



EAGLE MOUNTAIN CITY COUNCIL MEETING MINUTES

APRIL 7, 2026, 4:00 PM

EAGLE MOUNTAIN CITY COUNCIL CHAMBERS

1650 E STAGECOACH RUN, EAGLE MOUNTAIN, UT 84005

ELECTED OFFICIALS PRESENT: Mayor Jared R. Gray; Melissa Clark, Rich Wood, Brett Wright and Zachory Huish.

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Councilmember Craig Whiting.

CITY STAFF PRESENT: Benjamin Reeves, City Manager; Steve Mumford, Deputy City Manager; Carson Stapley, Information Systems Manager; John Magness, Legislative and Policy Analyst; Evan Berrett, Director of Legislative and Strategic Services; Marcus Draper, City Attorney; Lacie Messerly, City Recorder; Kimberly Ruesch, Director of Administrative Services; Stephanie Allred, Deputy Recorder; Kyle Ireland, Communications Manager; Natalie Winterton, Assistant to the City Manager; Elizabeth Fewkes, Planner; Terrence Dela Pena, Finance and Management Analyst; Vince Hogge, City Engineer; Zac Hilton, Assistant Public Works Director; David Salazar, Assistant City Engineer; Sariah Farmer, Digital Communications Specialist and Embret Fossum, UFA Battalion Chief.

CITY STAFF PRESENT ELECTRONICALLY: Brad Hickman, Public Works Director, Mack Straw, Assistant Public Works Director and Michele Graves, Library Director.

4:00 PM WORK SESSION – CITY COUNCIL CHAMBERS

Mayor Gray called the meeting to order at 4:00 PM, after which the City Council immediately entered a Closed Session.

1. ADJOURN TO A CLOSED SESSION

MOTION: *Councilmember Wright moved to adjourn to a Closed Session for the purpose of discussion of pending or reasonably imminent litigation; the character, professional competence, or physical or mental health of an individual; the purchase, lease, sale, or exchange of real property; a proposed development agreement, project proposal, or financing proposal related to the development of land owned by the state or a political subdivision; and/or the deployment of security personnel, devices, or systems, pursuant to Section 52-4-205(1) of the Utah Code, Annotated. Councilmember Wood seconded the motion.*

Melissa Clark Yes

Zachory Huish Yes

Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found here at 00:02:38.](#)

2. AGENDA REVIEW

No discussion.

3. CITY MANAGER INFORMATION ITEMS

No discussion.

4. DISCUSSION AND INFORMATION ITEMS

No discussion.

7:00 PM POLICY SESSION – CITY COUNCIL CHAMBERS

5. CALL TO ORDER

Mayor Gray called the meeting to order at 7:06 PM.

[The recording of the discussion can be found here at 00:07:16.](#)

6. PLEDGE OF ALLEGIANCE

Unified Fire Authority led the Pledge of Allegiance.

7. INFORMATION ITEMS/UPCOMING EVENTS

City Manager Ben Reeves provided information and updates.

Mayor Gray recognized Economic Development Director Abby Ivory as a recipient of the 2026 Robert M. Ady Professional Scholarship through the Site Selectors Guild.

8. APPOINTMENTS

8.A. Community Services Board Appointments

1. Elizabeth Evans – One Year Term, April 2026 through March 2027

MOTION: *Councilmember Huish moved to approve the appointment of Elizabeth Evans as a Community Services Board Member from April 1, 2026 through March 31, 2027. Councilmember Clark seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 00:12:29.](#)

2. Marian Burningham – Three Year Term, April 2026 through March 2029

MOTION: *Councilmember Clark moved to approve the appointment of Marian Burningham as a Community Services Board Member from April 1, 2026 through March 31, 2029. Councilmember Wright seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 00:13:04.](#)

City Recorder Lacie Messerly administered the Oath of Office to Marian Burningham as Community Service Board Members. Elizabeth Evans will have the Oath of Office administered at a later date.

9. PROCLAMATION

Community Forester Alec Boydston read the Arbor Day Proclamation.

[The recording of the discussion can be found online here at 00:17:42.](#)

10. PUBLIC COMMENTS

Mayor Gray opened the public comment period at 7:21 PM.

The following individuals spoke during the Public Comment period:

- Kesslynn Winn – Spoke in favor of a community center/recreation center.

Mayor Gray closed the public comment period at 7:23 PM.

[The recording of the discussion can be found online here at 00:20:23.](#)

11. CITY COUNCIL/MAYOR ITEMS

The Mayor and Councilmembers offered comments to the public.

[The recording of the discussion can be found online here at 00:24:14.](#)

CONSENT AGENDA

12. BOND RELEASES

12.A. Oquirrh Mountain Ranch & EM Central Stake LDS Building - Into Warranty

13. MINUTES

13.A. March 25, 2026 Minutes – Special City Council Meeting

14. RESOLUTIONS

14.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving a Land Exchange Agreement with SITLA for the Exchange of Properties in the Overland Area.

14.B. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving a Memorandum of Agreement Concerning Overland.

14.C. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Amending the Employee Policies and Procedures Manual to add Section 4.31.

14.D. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving a Separation Agreement and General Release.

MOTION: *Councilmember Clark moved to approve the Consent Agenda removing items 14.A. and 14.B. and moving them to Scheduled Items. Councilmember Wright seconded the motion.*

Melissa Clark Yes

Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Abstain
Brett Wright	Yes

The motion passed by a vote of 4:0, with one abstention.

[The recording of the discussion can be found online here at 00:34:56.](#)

Councilmember Rich Wood abstained from the Consent Agenda vote because he was not in attendance at the March 25, 2026 meeting and therefore did not participate in approving the minutes.

SCHEDULED ITEMS

Item 14.A. was removed from Consent Agenda for further discussion.

14.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving a Land Exchange Agreement with SITLA for the Exchange of Properties in the Overland Area.

[The recording of the discussion can be found online here at 00:37:32.](#)

Brad Mackay with Ivory Homes and City Attorney Marcus Draper responded to questions from the City Council.

MOTION: *Councilmember Whiting moved to approve a Resolution of Eagle Mountain City, Utah, Approving a Land Exchange Agreement with SITLA for the Exchange of Properties in the Overland Area conditioned upon:*

1. *Reciprocal language be added to Section 8 of the agreement; and*
2. *SITLA guarantees clean title of warranty.*

Councilmember Wright seconded the motion.

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

Item 14.B. was removed from Consent Agenda for further discussion.

14.B. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving a Memorandum of Agreement Concerning Overland.

[The recording of the discussion can be found online here at 00:49:56.](#)

City Attorney Marcus Draper responded to questions from the City Council.

MOTION: *Councilmember Wood moved to approve a Resolution of Eagle Mountain City, Utah, Approving a Memorandum of Agreement Concerning Overland. Councilmember Huish seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

15. PUBLIC HEARING/NO ACTION TAKEN

15.A. PUBLIC HEARING ONLY/NO ACTION TAKEN – Community Development Block Grant (CDBG).

[The recording of the discussion can be found online here at 00:50:37.](#)

Representative from MAG, Taylor Draney provided an overview of the item, including the requirement to review proposed projects and obtain City Council and public input prior to final project selection and submission. Ms. Draney responded to questions from the City Council.

Tabithas Way Representative Josh Osborne presented information regarding the organization's request for CDBG funding and outlined the program's qualifications. Mr. Osborne also responded to questions from the City Council.

Saved by Grace Foundation President, June Barr and Vice President Mindy Muller presented their application for CDBG funding, outlining the organization's qualifications and need for grant funds. They also responded to questions from the City Council.

My Story Matters Representative Joshua Heslop provided background of the organization, outlined qualifications for CDBG funding, and responded to questions from the City Council.

Mayor Gray opened the Public Hearing period at 8:40 PM. Seeing no one wished to speak Mayor Gray closed the Public Hearing at 8:40 PM.

16. RESOLUTIONS/PUBLIC HEARING

- 16.A. RESOLUTION/PUBLIC HEARING – A Resolution of Eagle Mountain City, Utah, Approving a Portion of Utah County Parcel #46:489:0159 of Designated “Significant Real Property” Pursuant to EMMC 3.30.060 and 3.30.070, and Establishing Terms of the Disposal.

[The recording of the discussion can be found online here at 01:42:10.](#)

City Recorder Lacie Messerly presented the item and responded to questions from the City Council.

Mayor Gray opened the Public Hearing period at 8:45 PM. Seeing no one wished to speak Mayor Gray closed the Public Hearing at 8:45 PM.

MOTION: *Councilmember Wood moved to adopt a Resolution of Eagle Mountain City, Utah, Approving a Portion of Utah County Parcel #46:489:0159 of Designated “Significant Real Property” Pursuant to EMMC 3.30.060 and 3.30.070, and Establishing Terms of the Disposal:*

- 1. The purchase price for the property is established at \$2.07 per square foot, with the total amount determined by the final surveyed areas; and*
 - 2. All existing utility easements on the property shall be maintained.*
- Councilmember Clark seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 01:46:34.](#)

17. ORDINANCES/PUBLIC HEARING

- 17.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Approving the Parks, Trails, and Open Space Master Plan.

[The recording of the discussion can be found online here at 01:48:25.](#)

Director of Landscape Architecture Vince Olcott and Planner Emily Seang with MHTN Architects presented an overview of the Parks, Trails, and Open Space Master Plan. They

highlighted updates and summarized community feedback gathered through online surveys and local events, identifying common themes and key trends. They also outlined next steps in the process and presented proposed recommendations.

Mr. Olcott and Ms. Seang responded to questions from the City Council. The City Council provided direction and requested that the item return at a future work session for further discussion.

Mayor Gray opened the Public Hearing period at 9:50 PM.

The following individuals spoke during the public hearing period:

- Wendy Warren – shared concerns about inconsistencies in the maps presented in the proposed master plan and requested that they be updated to reflect current information.
- Adam Clark - requested that the City develop a clear vision for the community and plan outlining future direction.

Mayor Gray closed the Public Hearing at 9:57 PM.

MOTION: *Councilmember Clark moved to table an Ordinance of Eagle Mountain City Utah, Approving the Parks, Trails and Open Space Master Plan, directing consultant to take feedback presented and return with revisions at a future work session, along with an agenda item for potential approval at the same meeting. Councilmember Huish seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	No
Brett Wright	Yes

The motion passed with a 4:1 vote.

[The recording of the motion can be found online here at 03:15:32.](#)

17.B. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Section 8.15 regarding Noise to Modify Maximum Decibel Levels During Hours of Restriction.

[The recording of the discussion can be found online here at 03:16:25.](#)

Long Range Planner Elizabeth Fewkes provided a background of the item and presented a proposed code amendment to clarify existing noise standards, allowing sound levels up to 75 decibels in the Industrial and Light Manufacturing/Distribution zones during restricted hours. Ms. Fewkes responded to questions from the City Council, which provided direction for moving forward.

Mayor Gray opened the Public Hearing period at 10:32 PM. Seeing no one wished to speak Mayor Gray closed the Public Hearing at 10:32 PM.

MOTION: *Councilmember Whiting moved to adopt an Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Section 8.15 regarding Noise to Modify Maximum Decibel Levels During Hours of Restriction as presented by staff, with the change that morning hours be adjusted from 9:00 a.m. to 7:00 a.m., seven day a week. Councilmember Huish seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	No

The motion passed with a 4:1 vote.

[The recording of the motion can be found online here at 03:33:18.](#)

- 17.C. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code 2.35 (Public Library) and Eagle Mountain Municipal Code 17.15 (Roles and Duties) to modify the Timing of Appointments form January 1 – December 31 to April 1 – March 31.

[The recording of the discussion can be found online here at 03:36:57.](#)

Assistant to the City Manager Natalie Winterton presented the item, explaining that the amendment would align the timing of appointments for the Public Library Board and Planning Commission with those of the already approved Community Service Board.

Mayor Gray opened the Public Hearing period at 10:37 PM. Seeing no one wished to speak Mayor Gray closed the Public Hearing at 10:37 PM.

MOTION: *Councilmember Wood moved to adopt an Ordinance of Eagle Mountain City Utah, Amending the Eagle Mountain Municipal Code 2.35 (Public Library) and Eagle Mountain Municipal Code 17.15 (Roles and Duties) to*

Modify the Timing of Appointments from January 1 – December 31 to April 1 – March 31. Councilmember Wright seconded the motion.

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 03:38:24.](#)

18. LEGISLATIVE ITEMS

18.A. DISCUSSION/PRESENTATION – Strategic Plan Vision and Mission Updates –
Director of Legislative Affairs, Evan Berrett

[The recording of the discussion can be found online here at 03:39:08.](#)

Director of Legislative Affairs Evan Berrett presented the item, emphasizing the purpose of a successful strategic plan, vision, and mission statement for Eagle Mountain City. Mr. Berrett responded to questions and requested feedback from the City Council,

18.B. UPDATE – Legislative Priorities List

[The recording of the discussion can be found online here at 03:52:39.](#)

Mayor Gray excused Councilmember Rich Wood for the remainder of the evening.

Management and Policy Analyst John Magness requested feedback from the City Council regarding a justice court and guidance moving the process forward.

MOTION: *Councilmember Wright moved to add pursuing a Justice Court with Utah County be added to the Legislative Priorities List. Councilmember Clark seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 03:56:36.](#)

MOTION: *Councilmember Clark moved to add a temporary business signage provision to the Legislative Priorities List, with direction for staff to return with a proposal to the City Council. Councilmember Wright seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 04:01:28.](#)

19. DISCUSSION ITEM ONLY/NO ACTION TAKEN

19.A. DISCUSSION – Alternative Energy Overlay Zone – Director of Legislative Affairs, Evan Berrett

[The recording of the discussion can be found online here at 04:02:44.](#)

Director of Legislative Affairs Evan Berrett presented the item, reviewed the changes to the Alternative Energy Overlay Zone, requested feedback, and responded to questions from the City Council.

19.B. DISCUSSION – FY 2026-2027 City Budget Update – Director of Administrative Services, Kimberly Ruesch

[The recording of the discussion can be found online here at 04:17:06.](#)

Director of Administrative Services Kimberly Ruesch provided an update on future presentation dates for discussion of the FY 2026-2027 City Budget.

20. CITY COUNCIL/MAYOR'S BUSINESS AND LIAISON REPORTS

Mayor Gray and the City Councilmembers offered comments and reports on committees to which they are assigned as liaisons.

[The recording of the discussion can be found online here at 04:18:58.](#)

21. COMMUNICATION ITEMS

22. ADJOURNMENT

MOTION: *Councilmember Clark moved to adjourn the meeting at 11:19 PM.
Councilmember Huish seconded the motion.*

Melissa Clark	Yes
Zachory Huish	Yes
Craig Whiting	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a 4:0 vote.

[The recording of the motion can be found online here at 04:20:02.](#)

The meeting was adjourned at 11:19PM.

Approved by the City Council on April 21, 2026.

Lacie Messerly
City Recorder